

Revolutions and Constitutions

Hannah Arendt's Challenge to Carl Schmitt

William E. Scheuerman

No two names better recall the polarized character of political life in mid-century Europe than Carl Schmitt and Hannah Arendt. Like so many of his peers in the Weimar intelligentsia, Schmitt eagerly polemized against the Weimar Republic and actively sought its destruction. In 1933 he sold his soul to the Nazis and soon became one of their most impressive intellectual apologists. In striking contrast, Arendt risked her life to help antifascists and fellow Jews struggling to escape Germany in the immediate aftermath of the Nazi takeover. Forced to join the ranks of the thousands of "stateless" persons stripped of their German citizenship by the new regime, she ultimately found her way to New York City and a stunning career as one of our century's most impressive critic of totalitarianism. While Schmitt would continue to seize every opportunity to belittle the achievements of liberal democracy, even after the establishment of the relatively robust German Federal Republic in 1949, Arendt refused to abandon her chosen *Heimat*, the United States, even in its darkest hours. For Arendt, Vietnam and Watergate offered indisputable proof that the republican legacy of the American founding demanded our critical loyalty, but hardly—as one can imagine Schmitt arguing—of the inevitability of senseless political violence and authoritarian government.

In light of Arendt's heroism and Schmitt's cowardice—how else are we to describe their political and intellectual choices in the 1930s and 1940s?—it might seem mean-spirited to identify argumentative similarities between Schmitt and Arendt. Yet if we are to shed fresh light on the difficult problem of the relationship between revolutionary politics and constitutional government, we clearly need to do precisely that. In myriad respects, Arendt's thinking constitutes a powerful corrective

to Schmitt's worrisome brand of authoritarian decisionism. Arendt and Schmitt both emphasize the ways in which the spirit of the revolutionary moment inevitably haunts the political and legal institutions that it helped bring to birth. *Yet Arendt suggests that we need neither to accept Schmitt's vision of revolutionary politics as a mere exercise in arbitrary willfulness nor to accept the vision of dictatorship that logically follows from it.* An interpretation of Arendt that sees her as offering nothing but a "soft" brand of political existentialism, like that discernible in so many influential mid-century European thinkers, misconstrues core elements of her political theory.¹

Nonetheless, I do think that Arendt's work is similar to Schmitt's in one crucial way. In their respective meditations on the question of the relationship between revolutionary politics and constitutional government, Arendt and Schmitt both rely on a similar, one-sided interpretation of the heritage of the French Revolution. For *both* Schmitt *and* Arendt, the French Revolution represents little more than a precursor to contemporary forms of mass-based authoritarian nationalism. Both authors offer a historically anachronistic interpretation of French revolutionary practice and theory in which they misleadingly situate the most ominous elements of twentieth-century political experience; both seek to identify an affinity between twentieth-century mass-based dictatorship and the heritage of the French Revolution. In contrast to Schmitt, however, Arendt distances herself from the French legacy by turning instead to the American founding to demonstrate the existence of an alternative. But her famous account of the founding of the American Republic suffers in part because the model of the French Revolution counterposed to it, like Schmitt's account, is too one-sided. Although Arendt suggests how we might begin to provide an answer to Schmitt's authoritarian constitutional theory, her own response to Schmitt ultimately remains incomplete.²

Why should we care if Arendt reproduces one of Carl Schmitt's characteristically truncated interpretations of the modern political experience? As Arendt noted in 1963, and as recent events in Eastern Europe again confirmed, ours has been "a century of revolutions."³ If we are to realize an adequately democratic brand of constitutionalism in a political universe in which it remains far too underdeveloped, we need to do a better job of conceptualizing the relationship between revolution and constitutional government. Schmitt's brand of authoritarianism represents a blatant and even cynical betrayal of the best of the modern

revolutionary tradition. Yet Arendt's espousal of the American constitutional tradition, though obviously superior to Schmitt's position, also represents a deeply enigmatic appropriation of the revolutionary legacy.

I

Evocative of contemporary advocates of a so-called new constitutionalism, Schmitt repeatedly argues that constitutionalism consists of more than a set of restraints and limits to state authority.⁴ Constitutionalism certainly includes limiting or negative elements; the rule of law, and its celebrated insistence on exercising governmental power by means of calculable, predictable legal channels, is paradigmatic in this respect. But unless we simultaneously focus on the political "decision" which underlies the establishment of every operating constitutional system and alone makes it possible, Schmitt insists that we cannot even begin to make sense of the workings of the rule of law or any of a host of related negative restraints on state power. Even the most dogmatic classical liberal conception of constitutionalism necessarily presupposes the existence of a functioning political entity in need of regulation or control. Even the most orthodox liberal implicitly assumes the existence of a "positive decision," in favor of a particular form of constitutional government, which transcends the characteristically liberal obsession with legal limitations on state authority. Although typically downplayed by liberals, constitutionalism not only *limits* political power. Simultaneously, constitutionalism is realized and made possible by means of a *willful* exercise of political power.⁵

How are we to make sense of this originating exercise of willful power? For Schmitt, the fact that liberals have long tried to obscure constitutionalism's dependence on an underlying "positive decision" suggests that we need to turn precisely to that dramatic attempt to found a new constitutional order, viz., the French Revolution, which generated so much embarrassment for liberalism. For Schmitt, it is no accident that liberals have long struggled with this legacy. The French experience points to the Achilles' heel of liberal constitutional theory, which is its failure to take the all-important concept of the constituent power, the *pouvoir constituant*, seriously. In Schmitt's highly selective reading of French revolutionary theory and practice, the French made two genuinely pathbreaking discoveries. First, they envisioned the existence of an unlimited and indivisible sovereign, the *pouvoir constituant*, or constitution-making power, described most clearly in Abbé

Sieyès's extremely influential *What is the Third Estate?* Second, they attributed the exercise of arbitrary, supralegal constituent power to the "nation," the sovereign *peuple*: a "people" conceived from the outset in an ethnically particularistic fashion. The French thus acknowledged the absolutely pivotal role in every constitutional system of the omnipotent, legally and normatively unregulated *Volk*, acting in accordance with "a pure decision not based on reason and discussion and not justifying itself . . . an absolute decision created out of nothingness."⁶ For Schmitt, Sieyès, Rousseau, and the Jacobins ultimately represent precursors to his own idiosyncratic brand of political existentialism.

French theory and practice brilliantly capture, for Schmitt, the political verity that constitutionmaking always rests on the preexistence of an ethnically homogeneous nation, capable of differentiating itself from other peoples and, if necessary, waging battle against them.⁷ The indivisibility and omnipotence of the *pouvoir constituant* can only be understood in this context. For Schmitt, the *pouvoir constituant* is more than a mere conceptual fiction. In a very concrete sense, the *Volk* is always "constituted" first and foremost by defining itself in opposition to a "foe," by gaining a capacity for violent action against challenges to its collective identity. Only if a political entity can then effectively guard itself against "the other, the stranger . . . existentially something different and alien, so that in the extreme case conflicts with him are possible," does the apparatus of "limited" constitutional government have an opportunity to survive in the first place.⁸ In light of the constitution-making power's dependence on illiberal and violent instruments, it makes perfect sense to conceive of this power not only as the source of all law, but as unlimited by law. Especially in moments of life-threatening crises, when the identity of the homogeneous *Volk* is under attack, far more effective instruments of battle may need to be employed than those made available by existing legal and constitutional devices.

In contrast, the American Revolution *anticipates* some of the key concepts of modern constitutionalism. But it ultimately fails to formulate them with adequate precision. The *Federalist Papers* offers little more than meager details "about practical organizational questions," and American thought collapses the foundation of the social order and of a new constitutional order into one act. In contrast to the French, Schmitt thereby suggests, the Americans downplay the truth that constitution-making presupposes the existence of a unified, homogeneous *Volk* with a real capacity for willful action.⁹ In failing adequately to acknowledge that every constitutional founding rests on

an exercise of arbitrary power illegitimate from the perspective of the constitutional order which it intends to generate, the American experience reproduces liberal constitutionalism's conceptual blindspots.¹⁰ Although the French Revolution generated a number of typically liberal demands for restraints on state power, the French never allowed their concessions to liberalism to impede their prescient insistence on the centrality of the exercise of a willful "decision," which alone makes constitutionalism possible.¹¹ Combined with its relative conceptual sophistication, it is precisely this element of political realism that made the French model politically efficacious, whereas the theoretically inchoate American Revolution vanished from the vision of most political actors on the world scene.

Although Schmitt argues that Sieyès's *pouvoir constituant* stems in part from the legacy of French Absolutism, he refuses to take this as evidence of its problematic nature. In France, the "heightening of state power, the more intense unity and indivisibility"¹² that resulted from the French people's historic battle with the forces of Absolutism, allowed the sovereign nation to preserve its authentic political character, namely an ability to distinguish effectively between friend and the existentially "different and alien" foe. Conversely, the fact that the American uprising *failed* to take place in the shadows of Absolutism probably contributed to its political immaturity and relatively limited impact. *Pace* modern liberalism, the survival of "absolutist" elements in French revolutionary thought hardly constitutes a flaw. On the contrary, it alone allows the resultant constitutional system to survive in an explosive and violent political universe, whose underlying dynamics inevitably conflict with the "normativistic" illusions of universalistic liberalism and its naive aspiration to eliminate the specter of violence from the political universe. Schmitt also posits that the omnipotence of the revolutionary *pouvoir constituant* stems from the fact that the "aftereffects of Christian theological conceptions of the constituent power [of an awesome] God were still vibrant and alive in the eighteenth century, despite the Enlightenment."¹³ Yet, rather than suggesting the anachronistic character of absolutist power in a disenchanted moral and political universe in which nothing can be sacred, for Schmitt, this merely suggests the politically efficacious character of a religious past that has yet to come under the spell of modern relativism and nihilism.¹⁴

In Schmitt's creative gloss on French revolutionary theory, *no* legal procedure or institution can hope to contain or fully subsume the *pouvoir constituant*. The omnipotent founding popular sovereign gives

expression to its unlimited “power by means of ever new forms, and generates new forms and organizations out of itself, but it never conclusively subordinates its political existence to a particular form.”¹⁵ The *pouvoir constituant* may choose to employ liberal constitutional and legal devices, but it also may legitimately opt to disregard them. As Sieyès allegedly taught us, “it suffices if the nation wills it.”¹⁶ By reducing constitutionalism to a set of negative restraints on political power, liberals thereby commit an additional sin of falsely suggesting that the resultant constitutional system, the *pouvoir constitué*, can successfully absorb the *pouvoir constituant*. In Schmitt’s view, this view is incoherent. Not only does it disregard the crucial idea of the *inalienability* of the sovereign nation, but it wrongly implies the possibility of subjecting the unlimited and arbitrary *willfulness* of the *pouvoir constituant* to the mundane, everyday *lawfulness* of the *pouvoir constitué*, a manifest absurdity given the radically different underlying principles at hand here. Hoping to tame the *pouvoir constituant* by absorbing it into the everyday workings of constitutional government is akin to transforming fire into water, which trick, in Schmitt’s view, amounts to nothing but the naive fantasy of liberal alchemists.

The vicious circle of constitutional founding (recall that an act of willful power, unregulated by the constitutional order that it aspires to establish, alone makes the constitutional order possible) inevitably continues to haunt the everyday realities of liberal democratic politics long after the act of foundation seems complete. For Schmitt, *the original unharnessed willfulness which alone made constitutional government a reality can never be extinguished*.¹⁷ The unlimited, sovereign *Volk* “remains the real origin of all political events, the source of all power.”¹⁸ The all-powerful omnipotent subject of every liberal system, the people, continues to have a very real existence above and beyond the institutional complex of liberal constitutionalism. The *pouvoir constituant* remains a force to be reckoned with well after the revolution.

Yet because the people purportedly “can only engage in acts of acclamation, vote, say yes or no to questions” posed to them from above, Schmitt’s insistence on the inalienability and continuing viability of the original *pouvoir constituant* hardly forces his theory to take a radically democratic direction.¹⁹ Schmitt’s argument here is as straightforward as it is problematic: the people “cannot counsel, deliberate, or discuss. It cannot govern or administer, nor can it posit norms; it can only sanction by its ‘yes’ the draft norms presented to it. Nor, above all, can it pose a question, but only answer by ‘yes’ or ‘no’ a question put

to it."²⁰ Hence, the seemingly omnipotent *Volk* is destined to occupy a passive role in the actual day-to-day exercise of political decision making. Because the sovereign people are only capable of responding to simple questions, the actual exercise of power is best left to a powerful executive, outfitted with the authority to act outside legal and constitutional procedures that may stand in the way of the omnipotent will of the *pouvoir constituant* upon which his claim to power rests.

In short, an executive unfettered by traditional liberal legal devices, exercising awesome authority on the basis of an appeal to a particular *ethnos*, represents the best embodiment of the legacy of the French Revolution.

II

Alas, Schmitt's interpretation of the French Revolution says more about his own project than the eighteenth-century revolutionaries who wrote scathing attacks on the ancien régime, authored new constitutions, or struggled to make sense of the explosive dynamics of revolutionary politics. This is crucial to recognize for two reasons: (1) it robs Schmitt's preference for a plebiscitarian dictator of one of its most important theoretical supports; (2) Schmitt's mistakes help us identify the far less onerous—but nonetheless troublesome—failings of Hannah Arendt's analysis of the relationship between revolutionary politics and constitutionalism. I do not intend to provide another uncritical eulogy for the French Revolution; myths about the French Revolution surely have been far too widespread for too long.²¹ But we need to offer a more subtle vision of its legacy than is found in either Schmitt or Arendt.

So where does Schmitt go wrong? No one could possibly deny that the legacy of Absolutism, dictatorship, and militant nationalism make up indispensable elements of the story of the French Revolution. Thus, Schmitt seems justified in focusing on these elements. Yet we need to distinguish between the theory and practice of the French Revolution. Simply to assume an underlying affinity between these events and the core of the theoretical legacy of the French Revolution represents sloppy intellectual and political history. Schmitt projects the most ominous facets of twentieth-century nationalism and mass-based authoritarianism back onto the complex theoretical legacy of the French Revolution.²² In doing so, Schmitt leaves us with nothing more than a crude distortion of a set of ideas which still may have something important to

teach us today. If we accept Schmitt's—and, as we will see, Arendt's—view of this legacy at face value, we may miss its lasting contributions.

For example, Sieyès's influential conception of the "nation" is remarkably free of the ethnicist qualities which Schmitt at least implicitly attributes to it. Sieyès defines the "nation" as nothing but "a body of associates living under *common* laws and represented by the same *legislative assembly*," and he argues that basic political and civil liberties rightly "belong to all."²³ Sieyès does claim that the French nobility stands outside the "nation," but this is only because it possesses special privileges and rights denied other groups and thus "does not belong to the common order, nor is it subjected to the common laws."²⁴ Once the nobility abandons its special privileges and subjects itself to the "common laws," there is nothing to prevent it from being reintegrated into the French nation. The nobility's exclusion from the nation is thus a temporary affair that can, and should be, altered. Indeed, *What is the Third Estate?* is filled with polemics against aristocratic writers, such as Boulainvilliers, who offered ethnicist arguments in order to defend the purportedly "Germanic" French aristocracy and its privileges vis-à-vis commoners, "the descendants of mere Gauls and Romans."²⁵ For Sieyès, "all races are mixed . . . the blood of the Franks (none the better for being pure) now mingles with the blood of the Gauls," thus we can "hope that one day will see the end of this long parricide which one class is proud to commit day after day against all the others."²⁶ There is no emphasis here whatsoever on the need for common ethnic roots in Sieyès's emphatically inclusionary and formalistic conception of nationhood. On the contrary, Sieyès's conception of citizenship is arguably more pluralistic than those institutionalized in most democratic constitutional systems today.

From the perspective of the most recent scholarship on the relationship of citizenship to nationhood, Schmitt's interpretation of the French experience crudely reduces the French Revolution's universalistic and implicitly cosmopolitan ideals of citizenship to a competing concept of the nation conceived of "as an organic cultural, linguistic, or racial community—as an irreducibly particular *Volksgemeinschaft*."²⁷ At least in part because of the influence of writers like Schmitt, this alternative view continues to have real influence in Central and Eastern Europe. But it has little to do with the intellectual legacy of the French Revolution. The short-lived Jacobin Constitution of 1793 sought to extend political rights to "every foreigner at least twenty-one years of age who

has resided in France for a year and lives there by means of work or property, or has married a French woman, cares for a child or supports a senior citizen"—a far more generous standard for "naturalization" than found in any contemporary democracy. An August 1790 decree abolishing special regulations on foreigners, the *droit d'aubaine*, demanded that France "open its bosom to all the peoples of the earth, by inviting them to enjoy, under a free government, the sacred and inviolable rights of humanity." Likewise, the preamble to the 1791 Constitution announced that there would be "no privilege, no exception to the common law of all Frenchmen."²⁸ One can hardly imagine a greater distance between this view and Schmitt's own.²⁹

Nor does the theory of the *pouvoir constituant* possess the existentialist pathos that Schmitt anachronistically attributes to it.³⁰ In his description of the "nation" as the rightful possessor of the constituent power, Sieyès comments that "[t]he nation is *priori* to everything. It is the source of everything. Its will is always legal; indeed it is the law itself."³¹ Here Sieyès's rhetorical flourish should not be taken at face value, as the—oftentimes ignored—succeeding sentence in the most famous passage of *What is the Third Estate?* makes clear: "Prior to and above the nation, there is only natural law." In stark contrast to the unfettered arbitrariness of Schmitt's *pouvoir constituant*, the constituent power within Sieyès's theory, in fact, is limited by the imperatives of natural law. It is "everything" only in the sense that its legitimacy is greater than the *pouvoir constitué*, legal and political institutions created by the constitution-making power in accordance with a set of normative procedures and principles derived from Sieyès's rationalistic conception of natural law. Sieyès, the social contract theorist, speaks openly of the "sacred" right of property, and he argues in great detail that the "will of the nation" is legitimate only when it acts in accord with the "common security, the common liberty and, finally, the common welfare."³² Thus, representative bodies are forbidden to undertake nongeneral legal acts, and they have no authority "to regulate the private affairs of individual citizens."³³ Only if an assembly representative of the *pouvoir constituant* respects such standards can it "justify in the name of reason and fair-play its claim to deliberate and vote for the whole nation without any exception whatsoever."³⁴

This vision of the *pouvoir constituant* is clearly a long way off from Schmitt's *Volk*, acting according to "a pure decision not based on reason and discussion and not justifying itself." Because the constituent and constituted powers in Sieyès's theory share a similar normative

horizon—both rest on the principles of Sieyès’s characteristically Enlightenment model of the social contract—he need not juxtapose the *pouvoir constituant* and *pouvoir constitué* in as ominous a manner as Schmitt does. Hence, we find no unbridgeable gap here between a purportedly “normativistic” *pouvoir constitué* and a “decisionistic” *pouvoir constituant*. Sieyès admittedly comments that an extraordinary assembly of the nation “is not subjected to any [specific] procedure whatsoever.”³⁵ But this is no argument for a Schmittian exercise of arbitrary power. Rather, Sieyès simply understands that a diversity of conceivable procedures and institutions are compatible with his underlying normative vision. A people may rightfully choose a set of procedures for extraordinary sessions of the *pouvoir constituant* unlike those embodied in ordinary lawmaking devices—a practice, by the way, that even today has much to be said in its favor.³⁶ Whereas the *pouvoir constituant* in Schmitt’s theory is reduced to a quasi-mythical source of legitimacy for powerful leaders able to manipulate and mobilize mass sentiment, Sieyès readily points to concrete institutional forms which a polity can legitimately employ in order to make the “nation” a real force in political affairs: most importantly, the people should never abandon the authority to elect extraordinary representative bodies, nor should existing legislative bodies be denied the right to call such bodies into existence “just as litigants are always allowed to appeal to the courts.”³⁷ Although one assuredly can dispute the practical merits of such proposals, one thing is indisputable. In dramatic contrast to Schmitt, Sieyès offers an argument with genuinely liberal and democratic credentials.

Schmitt’s attempt to usurp the humane elements of the French Revolution’s legacy is one of continental political thought’s truly amazing sleights of hand. We would do well not to fall for it.

III

Hannah Arendt, in at least one crucial respect, does fall for it. For her as for Schmitt, the intellectual legacy of the French Revolution merely reproduces the most heinous features of Absolutism, particularly its vision of an indivisible, omnipotent, and legally unlimited sovereign. “What else did even Sieyès do but simply put the sovereignty of the nation into the place which had been vacated by the sovereign king.”³⁸ Sieyès’s theory of the *pouvoir constituant* is essential for understanding the critical failing that ultimately undermined his countrymen’s quest for stable republican order: “Both power and law were anchored in the

nation, or rather in the will of the nation, which itself remained outside and above all governments and all laws."³⁹ Arendt considers this catastrophic, in part because the French simultaneously conceived of power as a superhuman force, "the result of the accumulated violence of a multitude outside all bonds and all political organization."⁴⁰ Hence, constitutional and legal forms were rendered dependent on nothing but the transient "will" of political majorities, the mere quicksand of a "subjective state of mind."⁴¹ In Schmitt's terminology: the French Revolution burdened its political successors with a *decisionistic* concept of law.

Again like Schmitt, Arendt believes that the French ultimately failed to escape the paradoxes of the vicious circle of foundational politics. She accepts Schmitt's view that modern mass-based dictatorship legitimately lays claim to the French revolutionary heritage: the formless "national will could be manipulated and imposed upon whenever someone was willing to take the burden or the glory of dictatorship upon himself. Napoleon Bonaparte was only the first in a long series of national statesmen who, to the applause of the whole nation, could declare 'I am the *pouvoir constituant*'."⁴² The polity's foundational sin, the act of arbitrary force that made it possible in the first place, thus continues to haunt governments wherever they have been significantly influenced by the French experience. Yet, whereas Schmitt seems relatively unconcerned by the practical dangers of the French attempt to found legal forms on a purely subjective exercise of willful power, Arendt interprets the French constellation as a poisonous recipe for permanent revolution, for repeated attempts to dismantle legal and constitutional forms in the name of any of a diversity of political and social groups likely to claim the awesome power of the *pouvoir constituant*. In Arendt's sober reading of modern European history, the instability of constitutional government provides evidence enough of the unambiguously disastrous character of the theoretical and practical legacy of the French Revolution.

Arendt also accepts Schmitt's claim that the *pouvoir constituant* anticipates the most disturbing facets of modern nationalism. Even Sieyès, whom Arendt describes as "one of the least sentimental and most sober figures of the Revolution," is a prophet "of national revolutions or revolutionary nationalism, of nationalism speaking the language of revolution or of revolutions arousing the masses with nationalist slogans."⁴³ Indeed, revolutionary conceptions of "the rights of man" were flawed from the outset. They rested on the dubious idea of national sovereignty, which meant in practical terms that rights were destined to be

discarded as soon as they conflicted with the arbitrary dictates of irrationalist nationalist ideology.⁴⁴ Rousseau's theory is proto-nationalistic as well, for "Rousseau's concept of the general will presupposed and relied upon the unifying power of the common national enemy."⁴⁵ As Schmitt had similarly argued, Rousseau's antipluralistic conception of *le peuple* places substantial weight on its capacity for resolute, potentially violent action in the face of external foes.

Rousseau looms even larger in Arendt's selective account of the French story than in Schmitt's, in part because of Arendt's view of the relatively unambiguous character of Rousseau's relationship to Jacobinism and its modern-day totalitarian successors. While Schmitt rightly acknowledges the contradictory character of Rousseau's thought and is reluctantly forced to identify its liberal elements, Arendt occasionally reduces Rousseau to little more than a forerunner of Hitler or Stalin. The reader is repeatedly confronted with imaginative attempts to demonstrate an "elective affinity" between the horrors of modern mass-based politics and Rousseau's complex political theory. In the process, Arendt badly misrepresents crucial components of Rousseau's thinking.

For example, Arendt simply takes Rousseau's claim at face value that the general will, like Sieyès's *pouvoir constituant*, is altogether *unbound* and *absolute*. Thus, Arendt believes that we can ignore Rousseau's own adamant insistence in his crucial discussion of "The Limits of Sovereign Power," that political power is only legitimate when exercised in accordance with the ideal of the rule of law.⁴⁶ Nor, it seems, do we need to take Rousseau's detailed description of the proper *pre-suppositions* of legitimate republican government—modest size, and a substantial degree of social and economic equality, for example—very seriously. For Rousseau, such preconditions represent pivotal limitations on the absoluteness of the general will. Because Rousseau believed that the sovereign "never has a right to burden one subject more than another,"⁴⁷ he clearly hoped to *minimize* the scope of legislative activity. But for Arendt, Rousseau contributed to modern totalitarianism's destruction of the private sphere by trying to complement the idea of an external foe with the concept of an "internal" enemy existing "within the breast of each citizen, namely, in his particular will and interest."⁴⁸ Allegedly, it is here that we can identify the conceptual roots of the French Revolutionaries' most terrifying character flaw, their frightful, and ultimately disastrous, obsession with unmasking hypocrisy. For Arendt, the tremendous political resonance of Rousseau's conceptual framework stems from precisely this element: the struggle to unmask

and discredit the hypocrisy of the rich and powerful is bound to gain overriding significance whenever revolution occurs in a situation of abject poverty, which tends to give the abstractions of Rousseau's theory an "obvious plausibility."⁴⁹ Thus, if we are to make sense of the fascination exerted by the French Revolution on so many political actors in so many different parts of the world, we need to recognize its correspondence to the dictates of a political universe in which the poor and underprivileged have suddenly been "brought out of the darkness of their misery" and onto the political scene for the first time in human history.⁵⁰ Whenever the "social question" is raised, at least *some* version of Rousseauism is likely to appear on the revolutionary stage as well.

Arendt also offers a terribly one-sided interpretation of Rousseau's discussion of sovereignty. When Rousseau famously criticizes "the conjuring tricks of our political theorists" who "make of the sovereign a fantastic creature composed of bits and pieces," he is criticizing predemocratic conceptions of "divided sovereignty," in which distinct governmental bodies are simply distributed among distinct estates.⁵¹ *Pace* Arendt, he is *not* perpetuating Absolutism's quest to centralize governmental institutions. For Rousseau as for Locke, the "unity" and "indivisibility" of the "people" constitute an important contrast to premodern visions of the political community as consisting of differentiated and unequal status groups. Arendt conflates the Enlightenment defense of a unified, indivisible popular "sovereign" with an argument against a separation of powers within the decision-making apparatus and, thus, a *differentiation* or *division* of authority among *institutional* instances, which both Locke and Rousseau clearly endorse. For both Locke and Rousseau, "[p]opular sovereignty is the actual or potential force that unifies the state which, for convenience, divides its functions."⁵² Arendt's claim that Rousseau sought the awesome centralization of *institutional* power evident in the worst moments of the French Revolution rests on a failure to make an elementary conceptual distinction: one can insist on the unity and indivisibility of the democratic "people" *without* demanding the centralization of political authority into the hands of a tiny group of decision makers.

What lesson does Arendt draw from her fiction? Whereas Schmitt clearly delights in the presumed irrationalism of the French experience, Arendt thinks that we can do better. Thus, she turns to the example of the American Constitution in order to show how we might finally liberate ourselves from the vicious circle of foundational politics. In her account, the Americans avoid all the miserable mistakes committed by

their French brothers and sisters. "[T]he greatest American innovation in politics as such was the consistent abolition of sovereignty within the body politic of the republic. . . ." ⁵³ The Americans offer an authentically pluralistic vision of the citizenship; they point the way to an alternative conception of power which moves well beyond the French romanticization of the unharnessed will. The fiction of the unbridled *pouvoir constituant* could never gain a following among the colonists given the everyday "working reality" of colonial self-government, an experience of "the *organized* multitude whose power was exerted *in accordance with laws and limited by them*." ⁵⁴ Free of abject poverty, the Americans are spared the specter of Rousseau's proto-totalitarian theory. Montesquieu proves to be a far more significant—and, for Arendt, unambiguously beneficial—influence on the founding fathers. Most important perhaps, the Americans "were never even tempted to derive law and power from the same origin. The seat of power to them was the people, but the source of law was to become the Constitution, a written document, an enduring objective thing . . . never a subjective state of mind." ⁵⁵ In contradistinction to the French, the Americans avoid the perils of legal decisionism. The curious American worship of the Constitution represents the most obvious manifestation of the durability and perpetuity that the Americans, unlike the French, managed to attribute to constitutional forms, chiefly because they rightly refused to rest constitutional government on an ever-changing act of willfulness.

Although Arendt admits that the founders themselves may have been no more than faintly aware of the world-historical significance of their discovery, they purportedly discovered a path beyond the vicious circle of foundational politics. For Arendt, "[w]hat saves the act of beginning from its own arbitrariness is that it carries its own principle within itself," namely the vision of a shared political life based on "common deliberation and on the strength of mutual pledges." ⁵⁶ Even though the American Revolution represents a novel political experience, and notwithstanding the fact that "[i]t is the very nature of a beginning to carry with itself a measure of complete arbitrariness," ⁵⁷ the Americans effectively harness this arbitrariness by subjecting it to a set of (implicitly normative) principles that contrast dramatically with the willfulness and violence of the French experience. For Arendt, the very *ethos* of the foundation of the American Republic presupposes the ideal of a "mutual contract by which people bind themselves together in order to form a community . . . based on reciprocity," an implicit model of political life resting on the "binding and promising, combining and covenanting"

that alone can provide real substance to the struggle for mutuality and self-respect in an ever-changing and profoundly unpredictable world.⁵⁸ By avoiding the unharnessed arbitrariness and brutality of the French experience, the American revolutionaries set out on a path beyond the incestuous cycle of decisionism and dictatorship. "The way the beginner starts whatever he intends to do lays down the law of action for those who have joined him in order to partake in the enterprise and to bring about its accomplishment."⁵⁹ Because those who "began" the United States did so in a manner compatible with a defensible vision of republican political principles, the Americans may be able to succeed in preserving a polity that continues to preserve those principles. No foundational "original sin" haunts the American Republic. Hence, Americans need not fear the retribution that inevitably follows in the wake of such sins.

At least in the United States, *some* elements of the original revolutionary spirit continue to survive in the everyday operations of constitutional government: American constitutionalism has yet to extinguish the revolutionary flame.⁶⁰ Like Schmitt, Arendt thinks that the revolutionary tradition demonstrates the truncated quality of traditional liberal conceptions of "limited" constitutionalism. For her, the American case shows that a "positive" political element can make up an indispensable feature of a successful constitutional system. Constitutional government can *perpetuate* the most noble qualities of the revolution. In Arendt's alternative to Schmitt's account, however, the political element preserved by the American Republic consists of a readiness for common deliberation and self-enabling forms of political exchange and action, based on mutuality and reciprocity. It is light years away from Schmitt's monological will, acting in accordance with "a pure decision not based on reason and discussion and not justifying itself . . . an absolute decision created out of nothingness."⁶¹

IV

Although Arendt's attempted resolution to the vicious circle of foundational politics remains praiseworthy, her problematic view of the French experience ultimately generates a corresponding enigmatic view of the American experience. Unfortunately, Arendt simply complements the fiction of the unambiguously ("bad") French Revolution with a myth of the ("good") American Revolution. We certainly should applaud the gist of Arendt's implicit response to Schmitt. But precisely because Arendt

shares too many of Schmitt's assumptions about the modern revolutionary experience, her response to Schmitt is incomplete.

Many commentators have rightly criticized the selective character of Arendt's portrayal of the American founding. But few point to the most basic source of this failing: because Arendt's story of the French Revolution is flawed, her attempt to construct an *inverted* portrait of the French experience, by means of a fanciful retelling of the American founding, necessarily succumbs to the same tendentiousness. Although obsessed with the horrors of the abject poverty of revolutionary France, the barbarism of American slavery receives passing notice in Arendt's discussion.⁶² Notwithstanding Arendt's emphasis on the pluralism of American conceptions of citizenship, as a matter of fact, that pluralism is the product of a long—and by no means complete—series of political struggles; we need only recall the Supreme Court's infamous Dred Scott ruling, let alone the terrible truth that most African Americans were still denied their basic political rights even at the time of the publication of *On Revolution*. The French are roundly criticized for raising "the social question," yet it is pivotal for understanding the American founding as well.⁶³ The dreaded concept of the *pouvoir constituant* was hardly as alien to the American founders as Arendt would prefer to have us believe.⁶⁴ Hamilton and Madison even acknowledged, as Bruce Ackerman perceptively comments, "that the People best express themselves through episodic and anomalous 'conventions,' and not through regular sessions of ordinary legislatures."⁶⁵ The analytical distance here vis-à-vis French revolutionary theory is far less dramatic than Arendt ever seems to recognize.

But let me focus on one blind spot in Arendt's account; her uncritical assessment of the American conception of the separation of powers continues to have real significance today. Arendt's failing here should concern us because it potentially supports an excessively self-satisfied vision of the fundamentals of the American Republic. Combined with an instinctive hostility to the ("bad") French revolutionary legacy, this self-satisfaction risks contributing to the political parochialism and intellectual ethnocentrism so widespread in the United States today. It would be truly tragic if the most important influence on American political culture of a thinker as learned and cosmopolitan as Arendt turned out to be nothing but a reinforcement of precisely those conformist trends that rightly worried her so much.

Arendt's flattering view of Montesquieu's place in the formation of the American conception of the separation of powers reproduces the

ills of her complementary discussion of Rousseau's influence on the French. After describing Montesquieu's conception of the separation of powers, Arendt can barely restrain herself: "How well this part of Montesquieu's teaching was understood in the days of the foundation of the republic!"⁶⁶ Her enthusiasm here is only matched by her evident distaste for Rousseau in her closely related account of the French Revolution. I hope Arendt exaggerates Montesquieu's influence, because, if she *is* right, it suggests that the American polity is burdened by pre-modern institutional vestiges potentially incompatible with modern democratic ideals. Montesquieu criticized Absolutist claims to sovereignty in order to defend a *traditional* ideal of "divided sovereignty" in which separate institutional instances represent distinct social groups. In his own quest to preserve the privileges of the aristocracy, Montesquieu "related the three [governmental] powers to social groups. To him the monarch, who was to have the executive power, represented social interests different from those of the legislature; the legislature, in turn composed of two houses, was to represent the aristocracy and the bourgeoisie respectfully; while the judiciary, being '*en quelque facon nulle*,' was to represent everybody."⁶⁷ In contrast to Locke and Rousseau, Montesquieu is no defender of typically modern, universalistic conceptions of human equality and liberty, and thus he is no advocate of a characteristically modern conception of *popular sovereignty*, like that found in many competing Enlightenment theories. Montesquieu's theory is eclectic: civic republican elements coexist uneasily alongside a defense of the privileges of the nobility. It should hardly come as a surprise that his political influence was often greatest among conservatives and even reactionaries.⁶⁸ His is surely a powerful criticism of the concept of sovereignty, but nonetheless a critique written from the perspective of a theorist who often seems to aspire to preserve crucial features of a "moderate" monarchy based on "mixed constitutionalism." If Arendt is correct in seeing Montesquieu's influence on the early Republic as decisive, we will need to examine the possibility that the American conception of the separation of powers reproduces Montesquieu's decidedly antidemocratic biases.⁶⁹ This possibility does not seem to have worried the "republican" Arendt. But those of us less hostile than the republican Arendt to the achievements of modern representative democracy should be concerned.⁷⁰

From this perspective, Arendt's equally uncritical view of the American Supreme Court takes on fresh significance. One would never know from Arendt's stylized account that the proposed Supreme Court was

one of the most controversial innovations sought by the Federalists. Notwithstanding her explicit emphasis on the “mutual deliberation” of the American founding, the voices of those critical of Arendt’s own institutional preferences, the Anti-Federalists, are sadly missing from her account.⁷¹ Purportedly modeled on the Senate of classical Rome, Arendt believes that the Supreme Court continues to provide the American Republic with the *authority* missing from legal and constitutional forms in other democracies. Here Arendt’s argument rests in part on an etymological observation: “For *auctoritas*, whose etymological root is *augere*, to augment and increase, depended upon the vitality of the spirit of foundation, by virtue of which it was possible to augment, to increase and enlarge, the foundations as they had been laid down by the ancestors.”⁷² The authority of the Supreme Court stems from its capacity for simultaneously conserving and augmenting the Constitution, the most concrete achievement of the original act of foundation, as seen in the Court’s never finished task of interpreting and reinterpreting the Constitution. It both protects and builds on the achievements of the original act of foundation, and thus helps provide for precisely that measure of permanence and stability so rare elsewhere. For Arendt, the Supreme Court derives its special status from the fact that it exercises “a kind of continuous constitution-making, for the Supreme Court is indeed, in Woodrow Wilson’s phrase, ‘a kind of Constitutional Assembly in continuous session.’”⁷³

Unfortunately, this view of the American Supreme Court raises as many questions as it purports to answer. It seems to conflict with Arendt’s earlier conception of authority, as formulated in the crucial “What is Authority?” Whereas *On Revolution* implies that the ongoing “constitutional conversation” of the Supreme Court represents an augmentation of the “mutual deliberation” basic to the act of founding itself, the earlier essay bluntly asserts that “[a]uthority . . . is incompatible with persuasion, which presupposes equality and works through a process of argumentation. Where arguments are used, authority is left in abeyance. Against the egalitarian order of persuasion stands the authoritarian [or authority-based] order, which is always hierarchical.”⁷⁴ It is difficult to imagine what status such a conception of authority can rightfully possess in a modern, disenchanted democratic polity: particularly in a democracy, only argumentation and discursive “persuasion” can legitimately justify the exercise of state power. Any attempt to hide the decision-making apparatus—and the American Supreme Court surely engages in extensive forms of legislative action—from the scrutiny of

critical publics constitutes an attempt to reassert traditional forms of political domination. Arendt's remarks notwithstanding, the pervasive blind worship of the Constitution and the Supreme Court in American political culture represents, at best, an ambiguous political good.⁷⁵

Even if we ignore Arendt's curious comments in "What is Authority?" and instead emphasize the argument of *On Revolution*, an additional dilemma immediately presents itself. Let us accept the need for an institution that demonstrates the interrelated character of the experiences of foundation, augmentation, and conservation. Let us also presuppose that "a kind of Constitutional Assembly in continuous session" is essential to the guarantee of continuity and perpetuity in an unstable and unpredictable political universe. Does Arendt's uncritical portrait of the American Supreme Court in *On Revolution* automatically follow from these observations? Might there not be alternative, potentially superior institutional embodiments of this normative aspiration? My worries here are twofold. First, Arendt's view glosses over the more troublesome (and idiosyncratic) elements of the American constitutional court, such as the fact that Supreme Court justices have life tenure. In short, it discourages a serious discussion of the merits of alternative models of judicial review. Second, Arendt's fascination with the "novelty and uniqueness" of the American Supreme Court ultimately prevents her from engaging in an adequate analysis of alternative institutional devices suited to the task of constitutional "augmentation." Admittedly, Arendt *acknowledges* what seems to me to be central to any discussion of this issue, namely amendment procedures which purportedly allow "the people" to reenact the role of constitutional founder, but she fails to offer an adequate account of the place of constitutional amendment because of her peculiar obsession with the Supreme Court and its Roman origins.⁷⁶ Elsewhere in *On Revolution*, Arendt powerfully criticizes continental European legal traditions that reduce constitution-making to nothing but the monopoly of a narrow group of politically distant, technical legal experts.⁷⁷ But how exactly is the American Supreme Court different in this respect? Although the "blind worship" of home-grown institutions in the United States has effectively closed the eyes of even the keenest American observers of political affairs to this fact, an American-type Supreme Court represented a historical anomaly until quite recently. Nor does the record of the American Supreme Court reveal any more inherent virtue than that of any competing institutional site. Then why assume that a tiny group of judges, indirectly elected and then outfitted with awesome legislative power, represents a satisfactory

embodiment of the noble aspiration to preserve and build on the heroic acts of the founding generation?

Hannah Arendt never provides an adequate answer to this question. Like so many citizens of her adopted homeland, she succumbs to her own peculiar "blind worship" of the American constitutional tradition.

V

Let me underline the most important, perhaps counterintuitive, lesson of this essay. Hannah Arendt's inadequately critical portrayal of crucial facets of the American constitutional legacy is intimately related to Carl Schmitt's hostile view of liberal constitutionalism. In her attempt to retell the story of modern constitutionalism, Arendt turns Schmitt on his head. But she does so without questioning a set of deeply problematic common assumptions about the nature of the French Revolution and its legacy for modern constitutionalism. Arendt rightly tries to escape the confines of Schmitt's intellectual universe by defending the Americans against their French peers. Because she accepts a problematic "Schmittian" gloss on the French experience, her view of the American experience proves equally misleading. Furthermore, this interpretation inadvertently contributes to the widespread tendency to engage in a form of "blind worship" of the most enigmatic elements of the American revolutionary heritage. In light of growing evidence that so many of our political and constitutional mechanisms are badly in need of reform, Arendt's analysis seems particularly worrisome.⁷⁸

In the final analysis, Arendt seems to believe that the ills of Schmitt's legal decisionism can be effectively combatted by means of an awesome American-style Supreme Court outfitted with unprecedented judicial powers. The legal insecurity and arbitrariness countenanced by Carl Schmitt and his ilk can be avoided by establishing a group of juridical experts empowered with authority both to conserve and augment the work of the constitutional framers. But what if the obscure Anti-Federalist Brutus was right when he described the American Supreme Court as "invested with such immense powers, and yet placed in a situation so little responsible?" Surely, constitutional checks on the American Supreme Court, despite its impressive powers, remain minimal. But this would seem to bode poorly for Arendt's claim that the Americans undertook a "consistent abolition of sovereignty within the body politics." Hasn't the Supreme Court on occasion come close to taking over the role of an indisputable "final arbiter," in part because

of the American framers' failure to develop even the most modest set of checks on the Court and its members? Moreover, the annals of American constitutional jurisprudence hardly represent a paragon of legal regularity and predictability. Whatever its other merits, a Supreme Court as envisaged by Hannah Arendt hardly seems to constitute the ideal antipode to the ills of legal decisionism. How much constitutional jurisprudence has entailed highly "creative" readings of a text whose broad language remains, for better or worse, so indeterminate?

If we finally are to succeed in responding to Schmitt's authoritarian constitutional theory, we will need to do more than answer Schmitt's deceptive vision of the French revolutionary experience with an equally partial eulogy for the American founders. Indeed, we may even need to consider the possibility of institutional devices unknown to the American Founders and to one of their most idiosyncratic modern-day students, Hannah Arendt. In the aftermath of the horrors of totalitarianism, the unfinished task of democratic constitutionalism demands nothing less.

Notes

I would like to thank David Dyzenhaus and Iris Young for their written comments on an earlier draft, as well as Seyla Benhabib and Ingeborg Maus for words of encouragement and, of course, criticism.

- 1 Richard Wolin and Martin Jay have offered suggestive analyses of Arendt's alleged existentialism in Richard Wolin, *Labyrinths: Explorations in the Critical History of Ideas* (Amherst: University of Massachusetts Press, 1996), at 162–74; Martin Jay, *Permanent Exiles: Essays on the Intellectual Migration from Germany to America* (New York: Columbia University Press, 1986), at 237–56. But I believe that Maurizio Passerin d'Entreves effectively answers arguments of this sort in his fine *The Political Philosophy of Hannah Arendt* (New York: Routledge, 1994), at 85–90.
- 2 Arendt seems to have been familiar with the basic outlines of Schmitt's political and legal thought, as numerous references to Schmitt in her writings demonstrate. Although I have found no specific reference to the 1928 *Verfassungslehre* (Munich: Duncker & Humblot, 1928), where Schmitt offers the most lucid account of his constitutional theory, she may well have been aware of its core claims. One of Arendt's friends, the émigré Waldemar Gurian, was a former student of Schmitt's who devoted significant energy to developing a critique of his former teacher's legal thought. Although it is best to avoid speculation on such matters, I find it difficult to avoid imagining that Gurian and Arendt discussed Schmitt and his ideas, particularly

- in light of Schmitt's complicity in the horrors of Nazism. Hannah Arendt, "Waldemar Gurian: 1903-1954," in Hannah Arendt, *Men in Dark Times* (New York: Harcourt Brace Jovanovich, 1983), 251.
- 3 Hannah Arendt, *On Revolution* (New York: Penguin, 1963), at 18.
 - 4 Stephen Elkin and Karol Soltan, eds., *A New Constitutionalism: Designing Political Institutions for a Good Society* (Chicago: University of Chicago Press, 1993).
 - 5 Schmitt, *supra* n. 2, at xii, 40-41. All translations are my own. For Schmitt, Kelsen's vision of the legal order as based on nothing but a "basic norm," from which the entire legal structure is produced, represents the best contemporary example of liberalism's failure to acknowledge the existence of a foundational sovereign will at the basis of every legal system. For a discussion of Schmitt's constitutional theory and its relationship to Kelsen, see William E. Scheuerman, "Carl Schmitt's Critique of Liberal Constitutionalism," *Review of Politics* 58 (1996): 299.
 - 6 Carl Schmitt, *Political Theology: Four Chapters on the Concept of Sovereignty* (Cambridge, Mass.: MIT Press, 1985), at 66.
 - 7 Schmitt writes that "[a] people (*Volk*) must already exist as a political unity if it is to become the subject of constitution-making power." He then praises Sieyès's preference for the term "nation" in favor of "people," arguing that it better captures the idea of a *Volk* "capable of political action," in contrast to those political entities not fully coherent in ethnic or cultural terms ("*nur eine irgendwie ethnisch oder kulturell zusammengehörige . . . Verbindung von Menschen*"). Schmitt, *supra* n. 2, at 61 and 79. Schmitt also identifies the French Revolution as the birthplace of "national democracy" and comments that the presupposition of this type of democracy is "national democracy" and comments that the presupposition of this type of democracy is "national homogeneity," *ibid.*, at 231. Although Schmitt does leave open the possibility that national homogeneity may take distinct forms, I believe that most evidence suggests, as Ulrich Preuss notes, that Schmitt tended to favor an "ethnicist" form in which the *ethos* is substituted for the *demos*; *das Volk* is conceived as an "ethnic and cultural oneness," with a "capacity to realize its otherness in relation both to other people and the liberal-universalist category of mankind." Ulrich Preuss, "Constitutional Powermaking for the New Polity: Some Deliberations on the Relations Between the Constituent Power and the Constitution," 14 *Cardozo L. Rev.* 1993, 639, at 650.
 - 8 Carl Schmitt, *The Concept of the Political*, trans. George Schwab (New Brunswick, N.J.: Rutgers University Press, 1976), at 27.
 - 9 Schmitt's comments on the American case are scattered and unsystematic. Nonetheless, his argument seems to take the following form: the concept of a social contract, to the extent that "one considers this construction at all necessary," makes "political unity" possible in the first place. In turn, only a *Volk* possessing the quality of "political unity" is capable of con-

sciously exercising its will in a coherent manner, thus “deciding” in favor of a particular constitutional system. By conflating these two moments, the Americans risk obscuring this point. The Americans, therefore, ignore the importance of homogeneity as a precondition of constitution-making. Schmitt, *supra* n. 2, at 61, 78–79.

- 10 In Arendt’s words: “those who get together to constitute a new government are themselves unconstitutional, that is, they have no authority to do what they set out to achieve. The vicious circle in legislating is present not in ordinary lawmaking, but in laying down the fundamental law . . . which, from then on, is supposed to incarnate the ‘higher law’ from which all laws ultimately derive their authority.” *Supra* n. 3, at 184.
- 11 Schmitt, *supra* n. 2, at 51.
- 12 *Ibid.*, at 51.
- 13 *Ibid.*, at 78.
- 14 The target here, once again, is Kelsen, who accepted Weber’s vision of modernity as disenchanted and sought to justify a fallibilistic conception of liberal democracy appropriate to the morally “relativistic” dictates of modernity. Hans Kelsen, *Vom Wesen und Wert der Demokratie* (Tübingen: J. C. B. Mohr, 1929).
- 15 Schmitt, *supra* n. 2, at 79; see also Carl Schmitt, *Die Diktatur* (Munich: Duncker & Humblot, 1922), at 140–52, where Schmitt summarizes the *pouvoir constituant*.
- 16 Schmitt, *supra* n. 2, at 79.
- 17 This claim has a number of striking similarities to contemporary French post-structuralist conceptions of constitution-making. For a defense of the view that constitutional government rests on and perpetuates an unavoidably arbitrary exercise of power, see Bonnie Honig, “Declarations of Independence: Arendt and Derrida on the Problem of Founding a Republic,” *American Political Science Review* 85 (1991): 97. For a response, see Seyla Benhabib, “Democracy and Difference: Reflections on the Metapolitics of Lyotard & Derrida,” *Journal of Political Philosophy* 2 (1994): 1.
- 18 Schmitt, *supra* n. 2, at 79.
- 19 *Ibid.*, at 315.
- 20 Carl Schmitt, *Legalität und Legitimität* (Munich: Duncker & Humblot, 1932), at 93.
- 21 Notwithstanding his oftentimes caricatured interpretations of French revolutionary political thought, this is the important insight of Francois Furet, *Interpreting the French Revolution* (Cambridge: Cambridge University Press, 1981).
- 22 Ingeborg Maus has forcefully criticized interpretations of the French experience that mistakenly interpret it in light of the barbarism of mid-century European politics. My remarks here have been inspired by Maus, in more ways than I can begin to acknowledge. For a succinct summary of her

response to contemporary caricatures of French revolutionary political ideals, see Ingeborg Maus, "'Volk' und 'Nation' im Denken der Aufklärung," *Blätter für deutsche und internationale Politik* 39 (1994): 602. Maus is correct to emphasize that too many interpretations of this experience conflate French revolutionary thought and practice, in part because such conflations serve antidemocratic political causes. Along these lines, Rogers Brubaker argues that we need to distinguish between the "conspicuously cosmopolitan" character of French revolutionary ideology and the xenophobia apparent in the revolution's waning days, "a product of war and factional struggle, which engendered a climate of extreme suspicion of the internal enemies that might knowingly or unknowingly be in the service of external enemies." Rogers Brubaker, *Citizenship and Nationhood in France and Germany* (Cambridge: Harvard University Press, 1992), at 45–46.

- 23 Emmanuel Joseph Sieyès, *What is the Third Estate?*, trans. M. Blondel (New York: Pall Mall, 1963), at 58–59.
- 24 *Ibid.*, at 58.
- 25 *Ibid.*, at 60. Furet also underplays this absolutely crucial point. Sieyès simply contradicts Furet's claim that the French conceived of the nation as a "homogeneous" body in which "the multiplicity of individuals and of private interests is immediately cancelled out. . . ." *Supra* n. 21, at 33, 44. Far more reliable here is the little-known monograph by Murray Forsyth, *Reason and Revolution: The Political Thought of the Abbe Sieyès* (New York: Holmes & Meier, 1987), at 71.
- 26 *Supra* n. 23, at 60.
- 27 Brubaker, *supra* n. 22, at 1.
- 28 *Ibid.*, at 45.
- 29 Of course, one might respond to this argument by referring to Rousseau, whom Schmitt considers to be an influence on some features of Jacobin practice as well as a precursor to his own vision of a homogeneous *Volk*. Schmitt, *supra* n. 2, at 229–30. But two immediate responses are possible here. First, even if we accept this reading of Rousseau as a prophet of a nationally homogeneous democracy, substantial historical research suggests that his relationship to French revolutionary practice is extremely complicated. We simply cannot uncritically accept the view, stated recently by Furet as well, that Rousseau's "political thought set up well in advance the conceptual framework of what was to become Jacobinism. . . ." *Supra* n. 21, at 31. For a more balanced treatment of this issue, see Joan McDonald, *Rousseau and the French Revolution* (London: University of London Press, 1965) and Iring Fetscher, *Rousseaus Politische Philosophie* (Frankfurt: Suhrkamp, 1973). Second, Rousseau's vision of a homogeneous community is more complex than this view suggests. He clearly shows a preference for simple, small-scale, economically underdeveloped, and culturally homogeneous political communities (most famously, Corsica). But his is generally a

backwards-looking, even nostalgic view. He does not seem to believe that homogeneity of this type can be produced or manufactured. To suggest that Rousseau's ideal is analogous to the homogenizing tendencies of the large-scale modern nation-state or, for that matter, totalitarian attempts to *create* a national *folk community*, is probably anachronistic.

- 30 In a similar vein, see Stefan Breuer, "Nationalstaat und pouvoir constituant bei Sieyès und Carl Schmitt," *Archiv für Rechts- und Sozialphilosophie* 70 (1984): 495. In other words, Schmitt is wrong when he claims that Sieyès's theory already represents an attempt to transcend Enlightenment rationalism. *Die Diktatur*, supra n. 15, at 142.
- 31 Supra n. 23, at 124.
- 32 Supra n. 23, at 156–57, 183. We might recall Sieyès's influence on the Declaration of the Rights of Man, and his view that "the object of every social union, and consequently of every political constitution, can be nothing other than to guarantee, to serve, and to extend the rights of man living in society." Cited in Forsyth, whose discussion here is essential for understanding Sieyès's radical brand of liberalism, in supra n. 25, at 109. Sieyès is far closer to Locke than commentators acknowledge. Sieyès's theory of the *pouvoir constituant* bears a striking resemblance to Locke's view that power rightfully reverts to the hands of the people as a whole when government steps beyond the bounds of the principles and procedures outlined in Locke's rationalistic, natural law-based model of the social contract. The fact that Locke believes that sovereignty then belongs to the (noninstitutionalized) "people" (conceived, by the way, as an inalienable and indivisible entity), and *not* to existing legal and constitutional devices, hardly makes him a "totalitarian" anymore than it should Sieyès.
- 33 Supra n. 23, at 152.
- 34 Ibid., at 152.
- 35 Ibid., at 132.
- 36 One ill of too much of contemporary constitution-making is that the constituent power is left in the hands of ordinary legislative channels, which means in practical terms that parliamentary representatives and the interest groups they represent are left to determine the fate of fundamental constitutional issues. For a good discussion of the dangers of this approach in eastern Europe, see Andrew Arato, "Dilemmas Resulting from the Power to Create Constitutions in Eastern Europe" 14 *Cardozo L. Rev.* 1993, 661, and Bruce Ackerman, *The Future of the Liberal Revolution* (New Haven: Yale University Press, 1992).
- 37 Supra n. 23, at 137.
- 38 Supra n. 3, at 156.
- 39 Ibid., at 163.
- 40 Ibid., at 181. For a critique of this view of power, see Hannah Arendt, *On Violence* (New York: Harcourt Brace Jovanovich, 1970).

41 Supra n. 3, at 157, 163.

42 Ibid., at 163.

43 Ibid., at 75, 158.

44 Hannah Arendt, *The Origins of Totalitarianism* (New York: Harcourt Brace Jovanovich, 1979), at 230–31. There is only a “contradiction” between the idea of universal human rights and the nation-state if, like Schmitt and Arendt, we deemphasize the cosmopolitan character of early revolutionary conceptions of the “nation.” To the extent that revolutionary theorists aspired for a “universal” republic, or at least an international federation of republics, there is *no* contradiction here.

Although she more clearly acknowledges the cosmopolitan character of revolutionary French conceptions of citizenship, Julia Kristeva far too uncritically accepts Arendt’s argument on this point: “Hannah Arendt is right in thinking that the national legacy served as guarantee for Nazi criminality.” Julia Kristeva, *Strangers to Ourselves*, trans. Leon S. Roudiez (New York: Columbia University Press, 1991), at 151.

45 Supra n. 3, at 77.

46 It is important to note that Rousseau’s claim in Book 2, chapter 4, that “the general will, to be truly such, must be general in its objects as well as in its essence . . . that it loses its natural rectitude when directed toward any individual and determinate object . . .” would be incompatible with a vast array of legislative acts today, many of which are “individual” and situation-specific in scope. Authors who emphasize Rousseau’s “totalitarian” side repeatedly ignore this rather inconvenient fact. Jean-Jacques Rousseau, *The Social Contract*, in Frederick Watkins, ed., *Political Writings*, trans. Frederick Watkins (Madison: University of Wisconsin Press, 1986), 32.

47 Ibid., at 31.

48 Supra n. 3, at 78.

49 Ibid., at 94.

50 Ibid.

51 Supra n. 46, at 27. For a refreshingly clear-headed account of this issue, see Ingeborg Maus, *Zur Aufklärung der Demokratietheorie* (Frankfurt: Suhrkamp, 1992). For a provocative recent attempt to defend traditional conceptions of sovereignty, see Blandine Kriegel, *The State and the Rule of Law*, trans. Marc A. LePain and Jeffrey C. Cohen (Princeton, N.J.: Princeton University Press, 1995).

52 Franz Neumann, *The Democratic and Authoritarian State* (New York: Free Press, 1964), at 136.

53 Supra n. 3, at 153.

54 Ibid., at 166; my emphasis.

55 Ibid., at 157.

56 Ibid., at 212–13. Arendt does not deny the religious overtones of early American political thought. She rightly concedes that many attempts to resolve

the vicious circle of foundational politics in the American Revolution ultimately depend on traditional religious ideas. Yet while Schmitt, as I noted above, praises the fact that French revolutionary theory remained under the sway of traditional religious notions, Arendt believes that the American Founders at least *anticipate* a solution to the vicious circle of foundational politics that requires no religious grounding. In other words, they point to a conception of legitimate constitutional government suitable to the dictates of a disenchanted moral and political universe.

- 57 Ibid., at 206.
- 58 Ibid., at 170, 175. Clearly, much more is involved in Arendt's notion than the mere "language game" described by Honig in her defense of Derrida's (quite Schmittian) critique of Arendt. Honig, *supra* n. 17. Unfortunately, I cannot discuss the complexities of Arendt's republican vision of action and deliberation in adequate depth here. To understand this vision, see Hannah Arendt, *The Human Condition* (Chicago: University of Chicago Press, 1958), at 175–247.
- 59 *Supra* n. 3, at 212–13.
- 60 The increasing significance of the "social question" and the closely related Europeanization of American politics, however, pose an omnipresent threat to this possibility in Arendt's view.
- 61 *Supra* n. 6, at 66.
- 62 It simply does not suffice to assert that "[s]lavery was no more part of the social question for Europeans than it was for Americans" at the end of the eighteenth century, particularly in light of the important role played by debates over slavery in the French Revolution. *Supra* n. 3, at 71–72.
- 63 For a similar criticism, see Sheldon Wolin, "Hannah Arendt: Democracy and the Political" *Salmagundi* 60 (1983): 3.
- 64 In *Federalist Papers*, no. 40, Madison defends the manifest illegalities of the constitutional convention by noting that "in all great changes of established governments forms ought to give way to substance; that a rigid adherence in such cases to the former would render nominal and nugatory the transcendent and precious right of the people to 'abolish or alter their governments as to them shall seem most likely to effect their safety and happiness' . . . it is . . . essential that such changes be instituted by some *informal and unauthorized propositions*, made by some patriotic and respectable citizen or number of citizens." Clinton Rossiter, ed., *The Federalist Papers* (New York: Penguin, 1961), at 252–53. An excellent discussion of this point is provided by Akhil Reed Amar, "Popular Sovereignty and Constitutional Amendment," in Sanford Levinson, ed., *Responding to Imperfection: The Theory and Practice of Constitutional Amendment* (Princeton: Princeton University Press, 1995), at 89–116.
- 65 Bruce A. Ackerman, "Neo-Federalism?" in Jon Elster and Rune Slagstad,

- eds., *Constitutionalism and Democracy* (New York: Cambridge University Press, 1988), 153 at 163.
- 66 Supra n. 3, at 164.
- 67 Supra n. 52, at 137.
- 68 In particular, Arendt would have done well to recall that “Jefferson apparently did not think too highly of Montesquieu’s version of the separation [of powers] doctrine.” Ibid., at 139.
- 69 For an extremely provocative recent discussion of this possibility, see Maus, supra n. 51, at 227–46.
- 70 For a thoughtful analysis and critique of Arendt’s ideas about modern representative democracy, see George Kateb, *Hannah Arendt: Politics, Conscience, Evil* (Totowa, N.J.: Rowman & Allanheld, 1983), at 115–48.
- 71 For example, the Anti-Federalist “Brutus” asked “whether the world ever saw, in any period of it, a court of justice invested with such immense powers, and yet placed in a situation so little responsible . . . There is no power above them, to control any of their decisions. There is no authority that can remove them, and cannot be controlled by the laws of the legislature. In short, they are independent of the people, of the legislature, and of every power under heaven. Men placed in this situation will generally soon feel themselves independent of heaven itself.” Herbert J. Storing, ed., *The Anti-Federalist* (Chicago: University of Chicago Press, 1985), at 183.
- 72 Supra n. 3, at 201.
- 73 Ibid., at 200.
- 74 Hannah Arendt, “What is Authority,” in Hannah Arendt, *Between Past and Future: Eight Exercises in Political Thought*, enl. (New York: Penguin, 1961), at 93.
- 75 “The great measure of success the American founders could book for themselves, the simple fact that their revolution succeeded where all others were to fail . . . was decided the very moment when the Constitution began to be ‘worshipped’, even though it had hardly begun to operate.” Supra n. 3, at 198–99. I suspect that this “blindness” has contributed to the many instances when those who claimed the mantle of American constitutionalism—McCarthy, for example—were able to dismantle basic civil liberties.
- 76 Supra n. 3, at 200, 228. For an excellent discussion of the controversies concerning constitutional amendment procedures, see Levinson, supra n. 64. I do not mean to deny Bruce Ackerman’s recent claim that we need to provide adequate space for “normal” or “ordinary” politics in which questions of constitutional significance no longer possess primacy. In fact, I believe that Ackerman’s vision of a “dualist democracy” has much to be said in its defense. My question here simply concerns the appropriate *institutionalization* of this model. Very much in the shadow of Arendt, Ackerman believes that when the Supreme Court declares a statute unconstitutional, it is

simply “signaling to the mass of private citizens . . . that something special is happening in the halls of power; that their would-be representatives are attempting to legislate in ways that few political movements . . . have done with credibility,” in short, with the fact that “ordinary” legislators are now trying to break with a rough consensus achieved during a previous period in which “the people” made use of the track of “higher-lawmaking.” But even Ackerman admits that this view still leaves unanswered the question of “[w]hat prevents [the Supreme Court] from misusing its constitutional authority to further one or another factional interest rather than to interpret the meaning of the past constitutional achievements of the . . . People?” Why, in other words, need we assume that an American-style Supreme Court provides the most effective instrument for institutionalizing and preserving the achievements of “higher lawmaking.” Supra n. 65, at 172, 192. See also Bruce Ackerman, *We the People*, vol. 1 (Cambridge: Harvard University Press, 1991).

77 Supra n. 3, at 144.

78 Daniel Lazare, *The Frozen Republic* (New York: Harcourt Brace Jovanovich, 1996). My hunch is that academics will ignore *Village Voice* journalist Lazare’s muckraking book, because of its breezy style and, at times, populist assumptions. Nonetheless, Lazare does a fine job of explaining why so many of the idiosyncrasies of American constitutionalism can be linked to growing political alienation.